

CONFIDENTIAL PHYSICIAN PRACTICE MANAGEMENT
SERVICES AGREEMENT FOR SPECIALIZED
PHARMACEUTICAL PRESCRIBING

This **CONFIDENTIAL PHYSICIAN PRACTICE MANAGEMENT SERVICES AGREEMENT FOR SPECIALIZED PHARMACEUTICAL PRESCRIBING** (the “**Agreement**”) is made by and between _____, which has its primary physician office practice location at: _____, and which is a physician group practice that is duly authorized to operate as a business and employs (and/or contracts with) physicians licensed to practice by the State of _____ (hereinafter referred to as the “**Client**” or as the “**Group Practice**”), and **Elite Care Rx, LLC**, a Florida limited liability company organized and operating under Chapter 608, Florida Statutes, with the Client and the Manager collectively referred to in this Agreement as the “Parties,” as of the ____ day of _____, 20____ (the “**Effective Date**”).

RECITALS

WHEREAS, Manager is in the business of managing and implementing various pharmaceutical prescribing programs for physician group practices that employ and/or contract with medical doctors, osteopathic physicians, nurse practitioners and/or physician’s assistants who are licensed to practice their profession and who prescribe medications for their patients, including Worker’s Compensation patients and No-Fault/personal injury protection (“**PIP**”) patients (collectively, the “**Specialized Patients**”);

WHEREAS, many Specialized Patients experience significant health conditions affecting their mobility, ability to obtain necessary prescription medications, and ability to adhere to medication treatment regimens;

WHEREAS, Group Practice desires to offer a more comprehensive, convenient, and quality professional medical service for such Specialized Patients, providing for better medical management of patient conditions and maximizing opportunities for positive health outcomes, and believes it can do so by offering patients needing prescription medications the following options: (1) obtaining written prescriptions for medications to be filled at a local pharmacy, or (2) receiving medications directly via mail-order pharmacy;

WHEREAS, billing and collecting for, and otherwise managing pharmaceutical services, requires specialized administrative, quality, accounting, and other expertise, especially for Specialized Patients (i.e., patients who are covered by Workers’ Compensation and/or PIP insurance) in need of prescriptions filled that often give rise to the right to bill an insurance company pursuant to a state mandated fee schedule or an amount dictated by state policy;

WHEREAS, Manager has developed a great deal of expertise in billing and collecting from insurers providing coverage for injuries sustained by Worker’s Compensation and PIP patients, and offers to physician practices a Specialized Pharmaceutical Prescribing Management Services Program, (“**Management Program**”) which is a confidential and proprietary asset of Manager; and

Initials:

Group Practice

Elite Care Representative

Elite Care Rx, LLC (Confidential)

WHEREAS, Group Practice does not have specialized expertise in implementing or administering a pharmaceutical program for Specialized Patients. Thus, in order to provide for the pharmaceutical needs of the Group Practice's Specialized Patients in an orderly and convenient manner, and to better execute the administrative duties associated with billing and collecting for pharmaceuticals covered by the insurers of Specialized Patients, Group Practice desires to engage Manager to establish the Management Program in its offices and locations of practice (which are specifically identified and listed in **Exhibit 1** to this Agreement, the "**Locations**");

WHEREAS, neither Group Practice, nor any owners of or physicians employed by Group Practice, nor any family members of these individuals, have an ownership or investment interest in Manager; and both Group Practice and Manager understand and agree that neither will market or otherwise advertise on behalf of the other; and

WHEREAS, it is the desire of both Manager and Group Practice to comply with any and all existing and applicable state, federal and other health care laws;

NOW, THEREFORE, the Parties hereto, in consideration of the mutual promises contained herein, agree as follows:

1. **Recitals Incorporated:** The Recitals above are hereby incorporated into this Agreement and stipulated to by the Parties to be true and correct, and the Parties acknowledge and agree that the Recitals constitute, in part, consideration for them to enter into this Agreement.
2. **Appointment of Manager:** Group Practice hereby engages and agrees to pay Manager to implement and maintain the Management Program on Group Practice's behalf, at the Group Practice's Locations.
3. **Responsibilities of the Manager:** Manager shall develop, implement, operate its Management Program for servicing the Locations, and shall either perform, or cause to be performed by other parties, the tasks necessary to implement and manage the Management Program on behalf of the Group Practice, including, but not limited to, the following:
 - a. Identify appropriate provider or providers of mail-order pharmacy services for Specialized Patients electing to receive prescriptions through mail delivery.
 - b. Obtain assignment of, on the Group Practice's behalf, pharmaceutical claims. The pharmaceutical claims shall be purchased and owned by the Group Practice. However, at no time shall Manager acquire title, or be deemed to have acquired title, to the pharmaceutical claims. Title to the claims shall be held by the Group Practice, and the Group Practice is obligated for the cost of these claims.
 - c. Provide billing and collections services in the name of, and as agent for, the Group Practice to obtain payment for claims for pharmaceutical products that were dispensed to Specialized Patients by a licensed mail-order pharmacy if, subsequent to the dispensing and as permitted by applicable law, the pharmacy assigns the claim for payment for the pharmaceutical products to the Group Practice through a negotiated, arms-length transaction.

d. The Parties acknowledge and agree that Manager may utilize the services of an affiliated or subsidiary entity of Manager, including but not limited to Rx Development Associates, Inc., a Florida corporation, Doctors Medical, LLC, a Florida limited liability company, and/or Infinite Strategic Innovations, Inc., a Florida corporation, to perform such billing and collection services on behalf of Manager and Group Practice. These entities likewise have expertise in billing and collecting from insurers providing coverage for injuries sustained by Worker's Compensation and PIP patients.

e. All billing and collection and related services (including, without limitation, billing/collection for all separately reimbursable, pharmaceuticals and pharmaceutical supplies) which are furnished to the Group Practice's Specialized Patients as part of the Management Program will be exclusively billed for and collected utilizing a "Specialized Patients Account" under the control of, and in the name of, Manager.

f. As necessary, provide education and supervision of Group Practice's staff regarding Manager's confidential and proprietary Management Program.

g. Subject to the Group Practice physicians' ultimate supervision that complies with all applicable payment and coverage rules for pharmaceutical prescribing, Manager shall provide general administration of Manager's confidential and proprietary Management Program on behalf of Group Practice; provided, however, that each Party is and shall be solely responsible and liable for its own employee salaries, benefits, vacation pay, retirement benefits and/or other employee benefits or compensation.

h. Provide Group Practice with weekly reports detailing each Specialized Patient for whom the Group Practice has been assigned a pharmacy's claim for payment. Manager will reconcile all accounts and pay any amount owed to Manager out of the Specialized Patients Account.

i. In order to better monitor the Specialized Patients' compliance with his or her medication treatment plan, physicians within the Group Practice may at any time request prescription and/or patient information from the Manager, and Manager shall promptly provide such information to the requesting physician.

4. **Responsibility of Group Practice:** In the operation of the Management Program, Group Practice and its physicians shall:

a. Retain ultimate supervision and control of Manager's services in a manner that complies with all applicable payment and coverage requirements.

b. Supply to Manager all information necessary for Manager to discharge and efficiently carry out its duties, and to bill and collect pursuant to this Agreement.

c. Supply Manager with sufficient space within its offices to operate the Management Program as necessary.

d. Ensure that its physicians are properly and fully licensed and authorized in that state to prescribe pharmaceuticals, and that all pharmaceuticals prescribed by its physicians are in accordance with the physician's professional-ethical obligations, are medically necessary and proper, and are indicated by a Specialized Patient's medical diagnosis and treatment protocol.

e. Ensure that claims of patients primarily covered by Medicare, Medicaid, or any other federal or state program are not part of the Management Program.

f. Keep and maintain all required records related to the prescribing of medications pursuant to the terms of this Agreement and as required by law, and closely monitor Specialized Patient medication compliance.

5. **Management Fee:** Group Practice and Manager agree that Manager's fee for its services under the Management Program shall be a fixed amount, set in advance that does not vary. Therefore, as between Group Practice and Manager, Manager's agreed compensation shall be a flat fee based on each medication prescription claim successfully collected by Manager. The specific fee for each medication is set forth in the Group Practice formulary, attached as **Exhibit 2** to this Agreement. The Parties acknowledge and agree that they will provide each other with the necessary reports, information and documentation for each Party to perform their obligations under this Agreement. The Parties further acknowledge and agree that payors often make one or more partial payments on medication prescription claims throughout the collection process and, as a result, collection efforts remain ongoing to maximize amounts collected. If Manager collects a partial amount on a medication prescription claim, the Parties agree the Manager shall pro-rate the amount of its flat fee in proportion to the amount of each partial payment collected for that claim.

a. Fair Market Value and No Patient Referrals. The Parties each acknowledge and agree that the fees set forth hereunder are commercially reasonable, further both Parties' legitimate business purposes, and are fair market value for the services rendered by Manager, and that this amount has been reached through a good-faith, arms-length negotiations of the Parties which is consistent with general market value or commercial reasonableness. No amount paid or advanced, and no benefit conferred, under or in anticipation of this Agreement is or is intended to be, or is in any way contingent upon, an inducement or payment for a referral of patients by or to either Party or any of their affiliates, or an inducement or payment for the purchasing, leasing, ordering or arranging for, or recommending the purchasing, leasing or ordering of, any good, facility, service or item provided by either Party or any of their affiliates. This Agreement has no minimum volume or other such requirements with regards to the Specialized Patients, claims arising from the treatment of Specialized Patients, or otherwise. The Parties agree to re-evaluate the flat fees set forth on Exhibit 2 annually to validate Fair Market Value.

6. **Term and Termination:**

a. Term. This Agreement shall be for a term of one (1) year from the effective date written above, with automatic renewals every year after that for a period of one (1) additional year each, unless one Party notifies the other Party in writing at least ninety (90) days prior to the then current expiration date of its intention not to renew the Agreement.

b. Termination Without Cause. Either Party may terminate the Agreement with or without cause upon ninety (90) days prior written notice to the other Party.

c. Termination With Cause. Additionally, either Party may terminate this Agreement in writing immediately at any time for cause and without prior notice to the other Party in the event that: (i) any of the other Party's licenses to operate their businesses or practice as a medical practice or other licensed health care entity in their respective state of operation expires or is revoked, terminated, limited,

conditioned or restricted in any way; (ii) the other Party is not covered by professional liability insurance or appropriate general comprehensive liability insurance covering the provision of pharmaceutical prescribing services to patients (if required by applicable state or federal law) if such lack of coverage is not due to the action or inaction of the terminating Party; (iii) the other Party is convicted of a felony crime or a crime involving moral turpitude such as fraud, theft, embezzlement or the like; (iv) the other Party files for bankruptcy; (v) the other Party commits any act of prohibitive conduct in violation of this Agreement; or (vi) the other Party fails or refuses to perform any of its duties or responsibilities under this Agreement, or is otherwise in material default or breach of a provision of this Agreement, and such failure is not cured within fifteen (15) days of the non-breaching party giving notice of the breach (or such longer period of time as may be mutually agreed if the breach is not curable within such period of time).

d. Termination – Fees and Return of Cost/Payment Withhold. In the event of a termination of this Agreement for any reason, all claims acquired prior to the termination date will continue to be billed, and collections to the Specialized Patients Account will continue to be disbursed, as set forth in this Agreement.

7. **Independent Contractor Relationship:** In the performance of their work, duties and obligations as required hereunder, each Party understands and agrees that they are each acting as independent contractors in respect to the other. Each Party shall be solely and completely responsible for paying its own employees or contractors, and neither Party will have any claim against the other for salaries, employee benefits, vacation pay, sick pay, retirement benefits, or any other form of employee benefits. Manager shall not have or exercise any control or direction over Group Practice's exercise of medical judgment nor as to the medical judgment of Group Practice's professional employees. Physicians of the Group Practice shall at all times decide what pharmaceuticals are appropriate for their patients.

8. **Authority:** Except as otherwise specifically set forth in this Agreement, neither Party shall have any authority to enter into contracts binding the other Party or to incur any obligation on the part of such other Party. Specifically, neither Party shall: (i) use any money belonging to the other Party or pledge the other Party's credit (except as otherwise specifically provided for under this Agreement); (ii) release or discharge any debt due to the other Party; (iii) commit or cause to be committed any act whereby the property of the other Party may be subject to attachment or seizure; (iv) sell, mortgage, transfer or otherwise dispose of any assets of the other Party; (v) cause the other Party to become a guarantor, surety or endorser, or give any note for any person whomsoever; or (vi) bind or obligate the other Party in any manner whatsoever, whether by contract, agreement, note, mortgage or other obligation

9. **Billing and Collection Services**

a. Billing and Collection Services.

I. **Generally.** Manager, or an affiliated or subsidiary entity of Manager with which Manager has a written agreement to perform billing and collection services on behalf of Manager and Manager's clients, shall act as an independent third party billing company/agent for the billing and collection of all separately reimbursable claims for pharmaceuticals

furnished to the Group Practice's Specialized Patients. These pharmaceuticals will be furnished to Specialized Patients by mail-order pharmacies, which later assign their claims for payment to the Group Practice.

- II. Such billing and collection shall be performed by Manager as Group Practice's agent and in Group Practice's name, and shall be done using the Specialize Patients Account exclusively. All payments made or received for services and sales made pursuant to this Agreement shall be deposited directly into the Specialized Patients Account.
- III. **Assignment.** In furtherance thereof, and to the extent permitted under Florida, federal and the applicable law of the State in which the Group Practice is located and operates its physician offices and practice locations, Group Practice *assigns* to Manager Group Practice's right to bill and collect for all claims in Group Practice's name (or Group Practice's physicians' names) and under Group Practice's (or Group Practice's physicians') billing numbers when applicable, except as prohibited by law.
- IV. **Power of Attorney.** In connection with the assignment, Group Practice also authorizes and provides Manager with a power of attorney to exercise Group Practice's right to bill and collect for all such claims. In furtherance thereof, Group Practice agrees and hereby appoints Manager, for the term hereof, to be its true and lawful agent and attorney-in-fact, coupled with an interest, for purposes of: (i) billing and collecting in the name of Group Practice and its physicians for claims; and (ii) receiving, taking possession of, depositing, negotiating or endorsing in the name of Group Practice and/or its physicians any notes, checks, money orders, insurance payments and other instruments received in payment of accounts receivable for claims. If requested, Group Practice will execute any instrument reasonably requested by the Manager to evidence appointment or necessary to reappoint Manager as Group Practice's attorney-in-fact.
- V. **Cooperation.** Group Practice agrees to cooperate with Manager, and to execute such other documents and take such other actions as may be reasonably necessary or desirable, in connection with the efficient billing and collection for the claims, including, without limitation, producing the information necessary for the Manager to bill and collect the Group Practice's charges for claims. Group Practice shall cause any member or employee of Group Practice who receive directly any payments for the claims to deliver such amounts to the Manager, to be handled by the Manager in a manner consistent with other payments for claims.

10. Indemnification:

a. Manager shall indemnify and hold Group Practice harmless from and against any and all claims, liabilities, demands, causes of actions, damages, losses and expenses, including without limitation, reasonable attorneys' fees and costs of suit, arising out of or in connection with injuries or damages caused by Manager, or its staff or employees, as a result of Manager's actions, conduct, behavior, omissions, malfeasance or negligence to the extent that such damages, losses or expenses are not covered by either Group Practice's or Manager's insurance policies covering Manager's performance of its duties and obligations under this Agreement.

b. Group Practice shall indemnify and hold Manager harmless from and against any and all claims, liabilities, demands, causes of actions, damages, losses and expenses, including without limitation, reasonable attorneys' fees and costs of suit, arising out of or in connection with injuries or damages caused by Group Practice, or its physicians, staff, or employees as a result of the Group Practice's actions, conduct, behavior, omissions, malfeasance or negligence to the extent that such damages, losses or expenses are not covered by either Group Practice's or Manager's insurance policies covering Group Practice's performance of its duties and obligations under this Agreement or Group Practice's, and its staff, physicians or employees, rendering of health care services to Group Practice's patients.

11. **Representations and Covenants of Group Practice:** Group Practice hereby covenants, represents and warrants to Manager as a material inducement for Manager to enter into and continue its performance under this Agreement that (as of the date hereof and continuing throughout the term hereof):

a. Group Practice is not a party to any agreement, contract or commitment, or subject to any restriction or agreement containing a confidentiality or non-compete covenant or restriction or the like, which the execution of this Agreement would violate or which may have a possible present or future adverse effect on Manager or Group Practice in the performance of their duties under this Agreement.

b. Group Practice has not and shall not take any action, directly or indirectly, in violation of any applicable health care regulatory laws including, without limitation, 31 U.S.C. §3729 et. seq. (the federal False Claims Act), 42 U.S.C. §1320a-7a (civil monetary penalties), 42 U.S.C. §1320a-7b (criminal penalties), 42 U.S.C. §1320a-7b(b) (the federal Anti-Kickback Statute), 42 U.S.C. §1395nn (the federal Stark Law), Section 456.053, Florida Statutes (the Florida Patient Self-Referral Act), Section 68.081, et al., Florida Statutes (the Florida False Claims Act), Section 458.331(1)(i), Florida Statutes (the Florida fee-splitting prohibition), or the Florida Patient Brokering Act (Sections 456.054 and 817.505, Florida Statutes), or any similar law of the states where Group Practice is located.

c. Group Practice meets all requirements to be a "group practice" as such term is defined at 42 C.F.R. § 411.352. All Group Practice services performed hereunder will be appropriately personally furnished by a physician in the Group Practice, or by an individual who is supervised by a physician in the Group Practice in a manner that complies with all applicable payment and coverage rules for the services. The Locations set forth in this Agreement meet the "same building" or "centralized building" criteria set forth in 42 C.F.R. § 411.355(b)(2).

d. Group Practice has never had any of its medical malpractice or professional liability insurance policies canceled, restricted or failed to be renewed by an insurance carrier.

e. Group Practice and/or its physicians have never been convicted of any crime, or charged with any felony or crime involving moral turpitude.

f. Group Practice acknowledges and agrees that the foregoing covenants constitute a material inducement for Manager to enter into and to continue with its performance under this Agreement.

12. **Representations and Covenants of Manager:** Manager hereby covenants, represents and warrants to Group Practice as a material inducement for Group Practice to enter into and continue its performance under this Agreement that (as of the date hereof and continuing throughout the term hereof):

a. Manager is not a party to any agreement, contract or commitment, or subject to any restriction or agreement containing a confidentiality or non-compete covenant or restriction or the like, which the execution of this Agreement would violate or which may have a possible present or future adverse effect on Group Practice or Manager in the performance of their duties under this Agreement.

b. Manager has not and shall not take any action, directly or indirectly, in violation of any applicable health care regulatory laws including, without limitation, 31 U.S.C. §3729 et. seq. (the federal False Claims Act), 42 U.S.C. §1320a-7a (civil monetary penalties), 42 U.S.C. §1320a-7b (criminal penalties), 42 U.S.C. §1320a-7b(b) (the federal Anti-Kickback Statute), 42 U.S.C. §1395nn (the federal Stark Law), Section 456.053, Florida Statutes (the Florida Patient Self-Referral Act), Section 68.081, et al., Florida Statutes (the Florida False Claims Act), Section 458.331(1)(i), Florida Statutes (the Florida fee-splitting prohibition), or the Florida Patient Brokering Act (Sections 456.054 and 817.505, Florida Statutes), or any similar law of the states where Manager is located.

c. Manager has never had any of its liability insurance policies canceled, restricted or failed to be renewed by an insurance carrier.

d. Manager has never been convicted of any crime, or charged with any felony or crime involving moral turpitude.

e. Manager acknowledges and agrees that the foregoing covenants constitute a material inducement for Group Practice to enter into and to continue with its performance under this Agreement.

13. **Confidentiality:**

a. Group Practice acknowledges that Manager and its affiliates, including but not limited to Rx Development Associates, Inc., a Florida corporation, Doctors Medical, LLC, Florida limited liability company, and Infinite Strategic Innovations, Inc., a Florida corporation, have a legitimate and protectable interest in trade secrets and confidential, proprietary business information (hereinafter “**Confidential Information**”), which includes, but is not limited to:

- I. Pricing, service and contract information contained in this Agreement;
- II. Manager’s Management Program;

- III. Manager and affiliates' techniques, pricing structures, and strategies, costings, marketing plans and operations;
- IV. Manager and its affiliates' mailing list, list of their clients, and database concerning its current, former and prospective clients;
- V. Manager and its affiliates' inventions, patents, concepts and ideas, whether patentable or not, relating to their services and overall business functions;
- VI. Manager and its affiliates' business operations and plans, products, services, instruments, procedures, marketing strategies and plans, prices, costs, forecasts, finances, sales data, formulas, processes, systems, equipment, supply and investment sources, loan funding sources, opportunities, pricing structures and strategies, techniques and improvements, and information and knowledge acquired, learned or invented by Manager while performing services for Group Practice;
- VII. Manager and its affiliates' unique and specialized methods of billing and collecting claims, and gathering all information necessary for Manager to discharge and efficiently carry out its duties; and
- VIII. All other information provided by Manager and/or its affiliates to implement the Management Program and to otherwise provide the services to or on behalf of Group Practice under this Agreement.

b. Group Practice acknowledges that Manager and its affiliates' Confidential Information is a valuable, special and unique asset of the Manager's line of business, and that Manager has incurred and continues to incur a substantial monetary and time investment and increase in its overhead to enter into this Agreement with Group Practice. As such, the parties agree that Manager and affiliates' Confidential Information constitutes a trade secret under Section 812.081, Florida Statutes and similar federal and state laws, statutes and regulations, and/or otherwise constitutes valuable confidential business or professional information as intended under Section 542.335, Florida Statutes and similar federal and state laws, statutes and regulations, whether or not the information qualifies as a trade secret.

c. Group Practice covenants that it shall not at any time, whether during the term of this Agreement, or after the termination of such Agreement, without the prior, express, written approval of the Manager in each instance, disclose, divulge, or in any other way reveal, or cause another to do so, any Confidential Information to any person, party or entity, directly or indirectly except to the limited extent this may be necessary as part of this Agreement. In addition, the Group Practice shall not, for any purpose or reason, except within the scope of the Group Practice's responsibilities under this Agreement, directly or indirectly, use or utilize any of the Confidential Information for its own benefit, for the benefit of any competitor of the Manager, for the benefit of any third party, or for any purpose whatsoever.

14. **Miscellaneous:**

- a. **HIPAA:** In connection with the provision of the Management Program provided

Initials:

Group Practice

Elite Care Rx Representative 9

Elite Care Rx, LLC (Confidential)

hereunder, Manager will have access to certain protected health information (“**PHI**”) as defined by the Health Insurance Portability and Accountability Act of 1996 (“**HIPAA**”). All Parties agree to maintain the confidentiality of patient identifying information and records and not to use or disclose such information except as may be required or permitted by applicable law. Each party hereby assures the other party that they will appropriately safeguard protected health information made available to or obtained by the other Party. In furtherance of these requirements, Group Practice and Manager hereby agree to the terms of the HIPAA Business Associate Addendum attached hereto **Exhibit 2**, which is hereby incorporated and executed by reference. This **Section 14(a)** shall survive the termination of this Agreement.

b. **Notices:** All notices or communications required or permitted hereunder shall be in writing, and hand delivered or mailed using a nationally recognized overnight delivery service at the following address:

If to Manager:

Elite Care Rx, LLC
1305 City View Center
Oviedo, Florida 32765
Tel: 407-971-8708 Fax: 407-386-3233

With Copy To:

Peter Young, Esq.
1305 City View
Oviedo, Florida 32765

With an electronic copy to tim@cerio-law.com

If to Group Practice:

A Party may change its address for the purposes of this notice provision at any time in writing, complying with this notice provision. Notices delivered in person shall be deemed given at the time of receipt.

c. **Governing Law:** The validity, interpretation and performance of this Agreement shall be governed by the laws of the State of Florida, without giving effect to the principles of comity or conflicts of laws thereof. Each Party hereto agrees to submit to the personal jurisdiction and venue of the state and federal courts having jurisdiction over Seminole County, Florida, for the resolution of all disputes arising in connection with the interpretation, construction and enforcement of this Agreement, and hereby waive any claim or defense therein that such courts constitute an inconvenient or invalid forum.

d. **Entire Agreement:** This Agreement, including all Exhibits, constitutes the entire agreement between the Parties, and supersedes any and all other agreements, oral or in writing with

respect to the subject matter contained herein.

e. **Amendments and Waivers:** This Agreement may only be revoked, altered or amended, or modified by the written agreement of both Parties hereto. No waiver of any provisions of this Agreement shall be valid unless in writing and signed by the Party against whom such waiver is sought. One or more waivers of any covenant or condition of this Agreement by any of the Parties hereto shall not be construed as a waiver of any subsequent breach or of other covenants or conditions.

f. **Survival:** In the event of the expiration or the termination of this Agreement, those portions of this Agreement which by their nature are intended to, or reasonably should, survive the termination or expiration of this Agreement shall so survive.

g. **Section Headings:** Any section, section title or caption contained in this Agreement is for convenience only, and in no way defines, limits or describes the scope or intent of this Agreement or any of the provisions hereof.

h. **Invalid Provisions:** The invalidity or unenforceability of any particular provision of this Agreement shall not affect any other provision hereof. This Agreement shall be construed in all respects as if such invalid or unenforceable provisions were omitted.

i. **Successors and Assigns:** This Agreement shall be binding upon, and shall inure to the benefit of the successors and assigns of the Parties. In no event shall either Party assign or delegate any of their rights, powers, duties or obligations under this Agreement without prior written consent of the other Party.

j. **Construction:** This Agreement shall not be construed against any Party by reason of the fact that Party may be responsible for drafting this Agreement or any provision thereof.

k. **Attorney's Fees/Costs:** If any legal action is brought for the enforcement of this Agreement, or because of an alleged dispute, breach or default in connection with any provision of this Agreement, the prevailing party shall be entitled to recover reasonable attorney's fees (at the trial, appellate or post judgment level) sales and use taxes, court costs and all reasonable expenses, even if not taxable as court costs (incurred in that action) in addition to any other relief to which such party may be entitled, whether incurred at trial or on appeal. Attorney's fees shall include, without limitation, paralegal fees, investigative fees, administrative costs, sales and use taxes and all other charges billed by the attorney to the prevailing party.

l. **Interpretation:** When the context of this Agreement requires, the gender of all words shall include the masculine, feminine and neuter, and the number of words shall include the singular and plural. This Agreement shall not be construed against any Party by reason of the fact that such Party may be responsible for drafting this Agreement or any particular provision thereof.

m. **Cumulative Remedies:** Except as otherwise provided for to the contrary in this Agreement, remedies provided for in this Agreement shall be in addition to and not in lieu of any other remedies available to either Party and shall not be deemed a waiver or substitution for any action or remedy the Parties may have under law or equity.

n. **Counterparts:** This Agreement may be executed in multiple counterparts, each of which shall be deemed an original and all of which shall constitute a single agreement.

o. **Books, Office Equipment, Etc.:** All professional instruments, books, office equipment and other property furnished by either the Group Practice or the Manager shall remain the Group Practice's or the Manager's respective property at all times. All instruments, equipment, furniture, furnishing, supplies, samples, forms, charts, logs, brochures, policies and procedures, contracts and any other property, materials or information furnished by either the Group Practice or the Manager are and shall remain the sole property of the respective Party. Upon termination of this Agreement, each of the Group Practice and the Manager shall return or allow for the collection of any property in their possession which belongs to the other Party.

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the Effective Date set forth herein above.

CLIENT:

Name of Group Practice

By: _____
Signature

Print: _____

Title: _____

EIN: _____

MANAGER:

Elite Care Rx, LLC

By: _____
Signature

Print: _____

Title: _____

EIN: _____

Exhibit 1

List of Group Practice Office Locations

1. _____
2. _____

Exhibit 2

Group Practice Formulary / Management Fee

Initials: _____
Group Practice

Elite Care Rx Representative 14

Elite Care Rx, LLC (Confidential)

Exhibit 3

Business Associate Addendum

THIS HIPAA BUSINESS ASSOCIATE ADDENDUM (the “BAA”) is entered into as of the Effective Date, set forth above in the CONFIDENTIAL PHYSICIAN PRACTICE MANAGEMENT SERVICES AGREEMENT FOR SPECIALIZED PHARMACEUTICAL PRESCRIBING, by and between **Elite Care Rx, LLC** (“**Business Associate**”), and _____, on behalf of itself and its affiliates, if any (individually and collectively, the “**Covered Entity**”), and amends any current agreement between Business Associate and the Covered Entity where the subject matter of the agreement involves the creation, use, receipt or disclosure of Protected Health Information (as defined in 45 C.F.R. § 160.103) (“**PHI**”).

Pursuant to the Agreement, Business Associate may perform functions or activities on behalf of Covered Entity involving the use and/or disclosure of protected health information received from, or created by, Covered Entity (“**PHI**”). Therefore, if Business Associate is functioning as a business associate to Covered Entity, Business Associate agrees to the following terms and conditions set forth in this BAA.

1. **Definitions.** For purposes of this BAA, the terms used herein (whether or not capitalized), unless otherwise defined, shall have the same meanings as used in the Health Insurance Portability and Accountability Act of 1996, and any amendments or implementing regulations (“**HIPAA**”), or the Health Information Technology for Economic and Clinical Health Act (Title XIII of the American Recovery and Reinvestment Act of 2009), and any amendments or implementing regulations (“**HITECH**”).
2. **Compliance with Applicable Law.** Beginning with the relevant compliance and effective dates, for so long as this BAA is in place, Business Associate shall comply with its obligations under this BAA and with all obligations of a business associate under HIPAA and HITECH.
 - a. Pursuant to HITECH §§ 13401(a) and 13404(a), the provisions of HITECH that impose requirements and standards on covered entities with respect to security and privacy shall also be applicable to Business Associate, and shall be and by this reference hereby are incorporated into this BAA. All other provisions of HITECH that are applicable to Business Associate, and its relationship with Covered Entity under this BAA and the Agreement, shall be and by this reference hereby are incorporated into this BAA.
3. **Permissible Use and Disclosure of Protected Health Information.** Business Associate may use and disclose PHI as permitted or required by the Agreement, this BAA or by law. Business Associate may also use and disclose PHI: (i) for its own proper management and administration; and (ii) to carry out its legal responsibilities. If Business Associate discloses Protected Health Information to a third party for either above reason, unless such disclosure is required by law, Business Associate must obtain: (a) reasonable assurances from the receiving party that such PHI will be held confidential and be disclosed only as required by law or for the purposes for which it was disclosed to such receiving party; and (b) an agreement from such receiving party to notify Business Associate of any known breaches of the confidentiality of the PHI.
4. **Limitations on Uses and Disclosures of PHI.** Business Associate shall not use or disclose PHI

in any manner that is not permitted or required by the Agreement, this BAA, or by law.

5. **Required Safeguards To Protect PHI.** Business Associate shall use appropriate safeguards to prevent the use or disclosure of PHI other than pursuant to the terms and conditions of this BAA.
6. **Reporting of Improper Use and Disclosures of PHI.** Business Associate shall promptly report to Covered Entity a use or disclosure of PHI not provided for in this BAA by Business Associate.
7. **Reporting of Breaches of Unsecured PHI.** Business Associate shall promptly report to Covered Entity a Breach of Unsecured PHI, in accordance with 45 C.F.R. §§ 164.400-414.
8. **Mitigation of Harmful Effects.** Business Associate agrees to mitigate, to the extent practicable, any harmful effect of an unauthorized use or disclosure of PHI by Business Associate in violation of the requirements of this BAA.
9. **Agreements by Third Parties.** Business Associate shall ensure that any agent or subcontractor of Business Associate that will have access to PHI agrees to be bound by substantially the same restrictions, terms, and conditions that apply to Business Associate under this BAA with respect to such PHI.
10. **Access to Information.** In the event that Business Associate maintains PHI in a Designated Record Set, promptly upon receipt of a request from Covered Entity for access to such PHI pursuant to 45 C.F.R. § 164.524, Business Associate shall make available to Covered Entity such PHI as required by 45 C.F.R. § 164.524. Unless otherwise required by law, the term “Designated Record Set,” for the purposes of this BAA, shall not include any information in the possession of Business Associate that is the same as information in the possession of Covered Entity (information shall be considered the same information even if the information is held in a different format, medium or presentation or it has been standardized). Business Associate may charge Covered Entity a reasonable fee for such access.
11. **Availability of PHI for Amendment.** In the event that Business Associate maintains PHI in a Designated Record Set, promptly upon receipt of a request from Covered Entity for the amendment of such PHI pursuant to 45 C.F.R. § 164.526, Business Associate shall provide such information to Covered Entity for amendment and/or incorporate any such amendments in the PHI as required by 45 C.F.R. § 164.526. Business Associate may charge Covered Entity a reasonable fee to incorporate the amendment.
12. **Access and Amendment Responsibility.** Pursuant to HIPAA, in the event that Business Associate maintains PHI in a Designated Record Set, the parties agree that Covered Entity will have the responsibility to handle, track and maintain records of all requests by individuals to access or amend such PHI. Business Associate, as a business associate of Covered Entity, will not have any responsibility to handle, track and maintain records of any such requests except as set forth above.
13. **Documentation of Disclosures.** Business Associate agrees to document disclosures of PHI and information related to such disclosures as would be required for Covered Entity to respond to a request by an individual for an accounting of disclosures of PHI in accordance with 45 C.F.R. § 164.528 and HITECH § 13402(a).

14. **Accounting of Disclosures.** Promptly upon notice by Covered Entity to Business Associate that it has received a request for an accounting of disclosures of PHI pursuant to 45 C.F.R. § 164.528, Business Associate shall make available to Covered Entity information to permit Covered Entity to respond to the request for an accounting of disclosures of PHI for the six (6) years prior to the date on which the accounting was requested, as required by 45 C.F.R. § 164.528. In the case of an electronic health record maintained or hosted by Business Associate on behalf of Covered Entity, the accounting period shall be three (3) years, and the accounting shall include disclosures for treatment, payment and healthcare operations, in accordance with the applicable compliance and effective dates for HITECH § 13402(a). In response to a request from an individual for an accounting of disclosures from an electronic health record maintained or hosted by Business Associate, Covered Entity shall provide the individual with an accounting of disclosures in accordance with HITECH § 13405(c)(3)(A). With respect to Business Associate, Covered Entity may not elect to provide an individual with Business Associate's name and contact information under HITECH § 13405(c)(3)(B).
15. **Electronic PHI.** To the extent that Business Associate creates, receives, maintains or transmits electronic PHI on behalf of Covered Entity, Business Associate shall:
- a. Pursuant to Section 13401(a) of HITECH, comply with 45 C.F.R. §§164.308, 310, 312, and 316 as if Business Associate was a HIPAA covered entity, and otherwise implement administrative, physical and technical safeguards that reasonably and appropriately protect the confidentiality, integrity and availability of electronic PHI;
 - b. Ensure that any agent to whom Business Associate provides electronic PHI agrees to implement reasonable and appropriate safeguards to protect it; and
 - c. Report to Covered Entity any security incident of which Business Associate becomes aware. For purposes of this BAA, a "security incident" shall not include a request-response utility used to determine whether a specific Internet Protocol [IP] address, or host, exists or is accessible (i.e., a "ping").
16. **Availability of Books and Records.** Business Associate hereby agrees to make its internal practices, books, and records relating to the use and disclosure of Covered Entity's PHI available to the Secretary of the Department of Health and Human Services for purposes of determining Covered Entity's compliance with the Privacy Standards.
17. **Violation of BAA.** In accordance with HITECH Act §§ 13404(a)-(b) and 45 C.F.R. § 164.504(e), if either party knows of a pattern of activity or practice of the other party that constitutes a material breach or violation of such other party's obligations under this BAA, the non-violating party may take reasonable steps to cure the breach or end the violation (or allow the violating party the opportunity to cure the breach or end the violation), as applicable, and, if such steps were unsuccessful, may: (i) terminate this BAA, if feasible; or (ii) if termination is not feasible, report the problem to the Secretary.
18. **Effect of Termination of BAA.** If feasible, upon the termination of this BAA for any reason, Business Associate shall destroy or return all remaining magnetic tapes or source data containing PHI received from Covered Entity in the same format in which such tapes or source data were

submitted to Business Associate, unless said information has been de-identified and is no longer PHI. Notwithstanding the foregoing, to the extent that Business Associate determines that it is not feasible for Business Associate to return or destroy such PHI, Business Associate may retain such PHI, provided that: (i) Business Associate's privacy and security obligations shall survive any expiration or termination of the Agreement and this BAA; and (ii) such PHI shall be used or disclosed solely for such purpose(s) that made the return or destruction of the PHI infeasible. Business Associate shall remain bound by the provisions of this BAA, even after termination of the Agreement or BAA, until such time as all PHI has been returned, de-identified or otherwise destroyed as provided in this Section. The parties agree that the return or destruction of PHI received from, or created or received by Business Associate on behalf of, the Covered Entity in any format other than that in which Business Associate originally received such PHI, including pooled data, is not feasible and that such PHI must be retained by Business Associate to defend its work product and for future audits.

19. **De-identified Information and Data Aggregation.** Business Associate may create and use de-identified information in accordance with the requirements of 45 C.F.R. §§ 164.514 and 164.502(d)(2). Business Associate may use and further disclose PHI to provide Data Aggregation services as permitted by 45 C.F.R. § 164.504(e)(2)(i)(B).
20. **Third Party Rights.** The terms of this BAA do not grant any rights to any parties other than Business Associate and Covered Entity.
21. **Covered Entity Responsibilities.** The parties acknowledge and agree that, beginning with the relevant compliance and effective dates, for so long as this BAA is in place, Covered Entity shall comply with its obligations under this BAA and with all obligations of a covered entity under HIPAA and HITECH. Covered Entity shall not request that Business Associate use or disclose PHI in any manner that would not be permissible under the Privacy Rule if done by Covered Entity. Further, Covered Entity will not provide to Business Associate any PHI that is subject to any arrangement permitted or required of Covered Entity that may impact in any manner the use or disclosure of PHI by Business Associate under this BAA, including, but not limited to, any restriction on the use or disclosure of PHI as provided in 45 C.F.R. §§ 164.520 or 164.522 and/or agreed to by Covered Entity.
22. **Independent Contractor Status.** For the purposes of this BAA, Business Associate is an independent contractor of Covered Entity, and shall not be considered an agent of Covered Entity.
23. **Amendment.** The parties agree that, with no further action required by the parties, this BAA shall be deemed automatically amended to include and incorporate amendments or revisions to HIPAA and/or HITECH, so that the parties remain in compliance with such amendments or revisions. All references to regulations or provisions of HIPAA and/or HITECH herein shall be deemed to also refer to any amendment or revision thereto and/or to any successor regulation.
 - a. If, as a result of any amendments or revisions to HIPAA and/or HITECH, both parties determine that modifications to the terms of this BAA: (i) may not be deemed to be automatically incorporated into this BAA; and (ii) are strictly required by HIPAA or HITECH to be reduced to writing; the parties agree to take such action as is necessary to

enter into a mutually acceptable amendment to this BAA that addresses solely the legal changes that are required to be reduced to writing. The parties agree that this BAA may only be modified by mutual written amendment, signed by both parties, effective on the date set forth in the amendment. Neither party has the right to unilaterally amend or alter the provisions of this BAA.

24. **Conflicts.** If there is any direct conflict between the Agreement and this BAA, the terms and conditions of this BAA shall control.